

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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EVERISTUS NDIONU,

Plaintiff,

SUMMONS

Index No.:

-against-

The Basis of Venue is:

SERGEANT ALFONSINA DE LA CRUZ, Tax No.
932538

Location of Incident

Defendant.

Plaintiff designates New York
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 22, 2017

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: Sergeant ALFONSINA DE LA CRUZ, Tax No. 932538

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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EVERISTUS NDIONU,

Plaintiff,

INDEX NO.:**VERIFIED COMPLAINT**

-against-

SERGEANT ALFONSINA DE LA CRUZ, Tax No.
932538,**JURY TRIAL DEMANDED**

Defendant.

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Plaintiff EVERISTUS NDIONU, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. On May 22, 2014, at approximately 5:45 p.m., plaintiff was lawfully present in the vicinity of West 23rd Street and 11th Avenue, New York, New York, when he was falsely arrested, unlawfully searched, and falsely imprisoned by the defendant New York City Police Officers. Thereafter, plaintiff was transported against his will to the 10th precinct, whereat defendants unconstitutionally searched plaintiff, fingerprinted, and photographed him. Those officers that did not touch claimant failed to intervene and protect him from being falsely arrested, falsely imprisoned, and unlawfully searched. Thereafter, the officers maliciously prosecuted plaintiff by initiating a prosecution against him without probable cause and denied plaintiff the Fifth Amendment right to due process and right to a fair trial by providing false, misleading and/or incomplete information to the Manhattan District Attorney's Office and by swearing to the truthfulness of a summons that contained false information about plaintiff. Plaintiff was deprived of his Constitutional rights when the individual defendants unlawfully searched, confined, falsely arrested, and maliciously prosecuted plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. Plaintiff was deprived of his Constitutional and common law rights when the individual defendants denied plaintiff the right to due process and denied plaintiff the right to a fair trial in violation of the Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff EVERISTUS NDIONU is a resident of the state of New York.

3. Sergeant ALFONSINA DE LA CRUZ, Tax No. 932538, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Sergeant ALFONSINA DE LA CRUZ, Tax No. 932538, is and was at all times relevant herein, assigned to the 10th precinct.

5. Sergeant ALFONSINA DE LA CRUZ, Tax No. 932538, is being sued in her individual and official capacity.

6. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

7. Defendant City of New York is a municipal corporation created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

8. Plaintiff filed a Notice of Claim with THE CITY OF NEW YORK, in compliance with Municipal Law Section 50, and in furtherance of the causes of action brought herein pursuant to New York State Law.

9. More than thirty (30) days have elapsed since the Notice of Claim was served on THE CITY OF NEW YORK and defendant CITY OF NEW YORK has failed to pay or adjust the claim.

10. On July 16, 2015, defendant CITY OF NEW YORK conducted a hearing pursuant to General Municipal Law Section 50-h.

11. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

12. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

13. On May 22, 2014, at approximately 5:45 p.m., plaintiff was lawfully present in the vicinity of West 23rd Street and 11th Avenue, New York, New York, when he was unlawfully seized, unlawfully searched, falsely arrested, and falsely imprisoned by the defendant New York City Police Officers without probable cause or legal justification. Those officers that did not touch plaintiff failed to intervene and protect him from being falsely arrested, illegally searched and illegally seized.

14. By way of background, plaintiff is authorized by the laws of the City and State of New York to operate a yellow taxicab.

15. On May 22, 2014 at approximately 5:45 p.m., plaintiff was at work, lawfully operating a yellow taxicab, when he picked up a passenger in the vicinity of the corner of West 23rd Street and 11th Avenue.

16. After the passenger lawfully entered plaintiff's yellow taxicab, plaintiff proceeded to drive the passenger to the passenger's desired location.

17. Approximately two minutes after plaintiff picked up the passenger, plaintiff was pulled over to the side of the street by a blue and white NYPD vehicle that pulled up behind him with its lights flashing.

18. At no time did plaintiff commit a crime or provide the defendant police officers with an objective factual basis to suspect he was committing, had committed, or was about to commit a crime.

19. Nevertheless, plaintiff immediately cooperated, pulled to the side of the street, and waited for the NYPD officers to approach his vehicle.

20. The defendant police officers who approached his vehicle asked plaintiff to provide his driver's license and registration, amongst other documents.

21. Plaintiff provided each and every document to the NYPD officers that they requested.

22. After the police officers returned to their police vehicle to search for plaintiff's name in their system, they returned to plaintiff's yellow taxicab and asked him to step out of the vehicle in order to unlawfully place him in handcuffs behind his back.

23. The defendant police officers proceeded to unlawfully search plaintiff, without probable cause or legal justification. Specifically, the defendant police officers patted plaintiff down over his clothing, touching all areas of his body on top of his clothing and then searched in his pockets and under his clothing.

24. At no time during the unlawful search of plaintiff did the defendant police officers recover any weapons, drugs, or contraband in plaintiff's possession, custody or control.

25. Although the defendant police officers never possessed any facts that supported an allegation that plaintiff was committing a crime, the defendant falsely arrested and falsely imprisoned plaintiff without legal justification or probable cause.

26. The defendant police officers placed plaintiff in the back of their police vehicle and transported him against his will to the 10th precinct.

27. One of the defendant police officers drove plaintiff's yellow taxicab to the precinct.

28. Plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a filthy holding cell for approximately five hours at the 10th precinct.

29. At approximately 10:45 p.m., plaintiff was transported to Manhattan Central Booking where his unlawful detention continued.

30. Plaintiff was forced to appear before a Judge at approximately 12:30 a.m. on May 23, 2014, where he was informed that the officers falsely arrested him for allegedly having an outstanding bench warrant from 1999. In fact, the Judge stated on the record that there was no valid bench warrant from 1999 for plaintiff and the Judge ordered plaintiff released from custody.

31. In fact, the old summons had been dismissed on June 11, 1999 and no bench warrant had ever been issued in that case.

32. As a result of plaintiff's unlawful detention, he was forced to miss one day of work, losing approximately \$400-500 in fair, which is his daily average earnings, as well as \$145 in fees and other costs associated with operating the yellow taxicab.

33. Moreover, plaintiff was forced to call his supervisor to pick up the yellow taxicab from the 10th precinct, causing plaintiff humiliation, embarrassment, and a negative view by his employer.

34. In addition, the defendant police officers falsified facts and information to the Manhattan District Attorney's Office in order to justify their otherwise unlawful arrest of plaintiff and initiated an unlawful criminal prosecution of plaintiff based upon the officers' falsified allegations.

35. Defendants maliciously initiated a prosecution against plaintiff without probable cause by issuing him a summons containing false, misleading and/or incomplete allegations against plaintiff, which the officer swore to under penalty of perjury and filed the summons in New York County Criminal Court.

36. It is not even clear from the face of the summons with what crime the defendant police officers intended to charge plaintiff because the summons is facially insufficient and does not specify a statute that plaintiff allegedly violated.

37. Plaintiff was forced to appear in New York County Criminal Court to address the false criminal charges filed against him on one occasion on June 11, 2014, when all charges against him were dismissed in his favor because they were deemed legally insufficient.

38. The other individually named defendant police officers that did not physically arrest plaintiff but knew or should have known that their fellow officers violated plaintiff's constitutional rights, failed to intervene and to prevent the unlawful search, unlawful detention, false arrest, malicious prosecution, denial of due process rights and denial of the right to a fair trial from continuing to occur.

39. The unlawful search, unlawful detention, false arrest, false imprisonment, malicious prosecution, denial of due process and the right to a fair trial under the Fifth Amendment to the U.S. Constitution by the individually named defendants proximately caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The individually named police officer defendant while acting in concert and within the scope of her authority, caused plaintiff to be unconstitutionally seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted plaintiff without probable cause, reasonable suspicion or any legal justification in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

50. Defendants lacked probable cause to search plaintiff.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

55. Plaintiff repeats and realleges paragraphs 1 through 54 as if fully set forth herein.

56. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution.

57. Defendants commenced and continued a criminal proceeding against plaintiff.

58. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

59. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

60. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

to Due Process and a Fair Trial

64. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 63 with the same force and effect as if fully set forth herein.

65. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

66. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

67. Defendants signed false and misleading summonses and/or affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

68. In withholding/creating false evidence against plaintiff EVERISTUS NDIONU and in providing/withholding information with respect thereto, including but not limited to that EVERISTUS NDIONU unlawfully picked up a passenger in a "bus strip," defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

69. As a result of the foregoing, plaintiff EVERISTUS NDIONU, sustained, inter alia, a violation of the right to due process and the right to a fair trial under the Fifth Amendment to the United States Constitution, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of her constitutional rights.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

74. Defendants failed to intervene to prevent the unlawful conduct described herein.

75. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subjected to other physical constraints.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

JURY DEMAND

79. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff EVERISTUS NDIONU demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 22, 2017

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO Sergeant ALFONSINA DE LA CRUZ, Tax No. 932538

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 22, 2017

/s/
STUART E. JACOBS